

24STCV08765 24STCV08765

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Case Number: 24STCV08765 Hearing Date: July 21, 2026 Dept: 408

Defendants 1616

Holdings, Inc. and Five Below, Inc.'s Motion for Order Authorizing Substituted Service on Secretary of State as to Subpoenas for Urban Imports International, Inc. is GRANTED.

I.

BACKGROUND

On April 8, 2024, Plaintiff Consumer Protection Group, LLC ("Plaintiff") filed a complaint against Defendants 1616 Holdings, Inc. and Five Below, Inc. ("Defendants") alleging a single cause of action for Violation of Proposition 65.

On August 28, 2024, the court overruled Defendants' Demurrer to Plaintiff's complaint.

On September 5, 2024, Defendants filed an answer to Plaintiff's complaint.

On February 4, 2026, the court denied Defendants' Motion for Summary Judgment and granted Defendants' Motion to Seal.

On June 2, 2026, Defendants filed this Motion for Order Authorizing Substituted Service on Secretary of State as to subpoenas issued to Urban Imports International, Inc. ("Urban"). On July 8, 2026, Plaintiff filed an opposition. As of July 14, 2026, Defendants filed a reply.

II.

LEGAL STANDARD

“If

an agent for service of process . . . cannot with reasonable diligence be found at the address designated for personal delivery of the process, and it is shown by affidavit to the satisfaction of the court that process . . . cannot be served with reasonable diligence upon the designated agent by hand . . . the court may make an order that the service shall be made upon a domestic limited liability company [or domestic corporation] . . . by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State’s office in the capacity of assistant or deputy” (Corp. Code, § 17701.16, subd. (c); Corp. Code, § 1702, subd. (a).) Process in this manner contemplates inability to serve by hand pursuant to Code of Civil Procedure sections 415.10(a) [personal delivery], 415.20 [substitute service], or 415.30(a) [service by mail with a notice and acknowledgment of receipt]. (Ibid.)

III.

DISCUSSION

Defendants move the court for an order authorizing substituted service of subpoenas issued to nonparty Urban Imports International, Inc. (“Urban”) pursuant to Corporations Code section 1702.

A.

Request for Judicial

Notice

Defendants’ Request for Judicial Notice is granted. Judicial notice may be taken of

“[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452, subd. (c), (h).)

B.

Merits

Defendants provide that Urban has a principal place of business in Los Angeles, California with Ashkan Naami (“Naami”) as its officer and agent for service of process. (Motion, at p. 7; Ellis Decl., ¶ 14, Exh. I.) The Statement of Information for Urban, as filed with the California Secretary of State, lists a principal address, an address for its agent for service of

process, and a P.O. Box for its corporate officer. (Ibid.) On January 20, 2026, Defendants issued a deposition subpoena for Urban's PMK using the address listed for its registered agent. (Motion, at p. 7; Ellis Decl., ¶ 15, Exh. J.) The deposition subpoena was provided to a third party process server, First Legal, for service at 2833 Leonis Boulevard #104, Huntington Park, CA 90255. (Motion, at p. 7; Ellis Decl., ¶ 16.) On January 21, 2026, First Legal was unable to serve Urban at such location as there was no street number matching this address. (Motion, at pp. 7-8; Ellis Decl., ¶ 16, Exh. K.)

Subsequently, Defendants re-issued the subpoena updating the address to 4601 S. Soto Street, Vernon, CA 90255 as listed for the principal office of Urban. (Motion, at p. 8; Ellis Decl., ¶ 17, Exh. L.) On January 22, 2026, First Legal was unable to serve Urban reporting that the address was for a suite located in a building owned by Lincoln International Inc. where Urban rents a space. (Motion, at p. 8; Ellis Decl., ¶ 18, Exh. M.) First Legal further stated that the process server spoke to a woman at the front desk of the office building who stated that the Urban office is hardly open; that the employees do not have a set time they come in; and that employees come in approximately once a month. (Ibid.)

On January 23, 2026, Defendants again re-issued the subpoena updating the address to 3977 Marcasel Avenue, Los Angeles, CA 90066 for Naami. (Motion, at p. 8; Ellis Decl., ¶ 20, Exh. P.) However, on January 26, 2026, First Legal was unable to serve Urban or Naami as there was no answer and no activity seen at the location. (Motion, at pp. 8-9; Ellis Decl., ¶ 21, Exh. Q.) On January 27, 2026, First Legal made a second unsuccessful attempt to serve at such address reporting that an unknown person spoke from behind the door and failed to respond or open the door when the process server identified herself. (Ibid.)

On January 27, 2026, Defendants mailed the subpoena via USPS Certified Mail to Urban's P.O. Box at 2305, Huntington Park, CA 90255, with no response. (Motion, at p. 9; Ellis Decl., ¶ 22, Exh. R.) On February 19, 2026, Defendants served an amended subpoena on Plaintiff, requesting Urban's PMK's appearance on April 2, 2026 which was also unsuccessful. (Motion, at p. 9; Ellis Decl., ¶ 23, Exh. S.)

In opposition, Plaintiff argues that Defendants failed to demonstrate that Section 1702 authorizes substituted service of a deposition subpoena on a nonparty corporation. (Opp.,

at pp. 4-6.) Plaintiff further argues that, even if Section 1702 was applicable, Defendants failed to show reasonable diligence to warrant substituted service on Urban. (Id., at pp. 6-9.)

The court finds that substituted service as prescribed under Section 1702 applies to service of “process” which is defined as a writ or summons issued in the course of a judicial proceeding, including a subpoena. (Code Civ. Proc., § 17, subd. (7); Code Civ. Proc., § 1985, subd. (a).) Moreover, the court finds that Defendants sufficiently demonstrated that the subpoena cannot with reasonable diligence be served based on the information provided.

Accordingly, the motion is granted.

IV.

CONCLUSION

Defendants

1616 Holdings, Inc. and Five Below, Inc.’s Motion for Order Authorizing Substituted Service on Secretary of State as to Subpoenas for Urban Imports International, Inc. is GRANTED.